

26STLC03600 26STLC03600

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-10

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Case Number: 26STLC03600 Hearing Date: September 10, 2026 Dept: 25

HEARING DATE: Thurs., July 30, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Omni

Therapy, Inc. v. Destiny Home Health Services, Inc., et al.

COMP. FILED: 05-28-26

CASE NUMBER: 26STLC03600

NOTICE: OK

PROCEEDINGS: DEMURRER OF DEFENDS TO PLAINTIFF'S
COMPLAINT OMNI THERAPY INC.

MOVING PARTY: Non-Party
and Purported Novation Assignee of Defendant Destiny Home Health Services, Inc.
Robert Umoh and Defendant Aniema Umoh

RESP. PARTY: Plaintiff
Omni Therapy, Inc.

DEMURRER TO COMPLAINT

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

The Court OVERRULES

the demurrer in its entirety.

Omni Therapy is to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 17, 2026 [

] Late ☐ None

REPLY: Filed

on July 22, 2026 [

]

Late ☐ None

ANALYSIS:

Omni

Therapy, Inc. sued Destiny Home Health Services, Inc. and Aniema Umoh for breaching a contract. Robert Umoh—who purports to be the novation assignee of Destiny Home's contract with Omni—and Aniema Umoh now demur to all of Omni's causes of action pursuant to Code of Civil Procedure section 430.10, subdivision (e) for failure to state sufficient facts to constitute a valid cause of action.

As an initial

matter, Robert is not currently a proper defendant in this case. He contends that Destiny Home assigned to him its indebtedness, rights, obligations, interests, titles, and benefits, but the "Assignment and Novation Agreement" provided to the Court does not reference the contract between Omni and Destiny Home, and is signed only by Robert as assignee and Aniema as president of Destiny Home. In this context, a proper novation requires

the former debtor to be released of their obligation “by consent of the former debtor as well as the creditor.”

(Wells Fargo Bank v. Bank of America (1995) 32 Cal.App.4th 424, 432, italics added.) There is no evidence that Omni consented to any novation.

Destiny Home, meanwhile, is a corporation that must be represented by a lawyer in legal proceedings and may not represent itself (either directly or through a non-lawyer agent) in litigation. (Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 727, 729; Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1103.) The Court continued a hearing on this demurrer from July 30 to today in part to allow Destiny Home to retain counsel. There is, as of now, no substitution of counsel filed with the Court.

Putting all that aside for the time being, the Court OVERRULES the demurrer in its entirety.

A demurrer assumes the truth of the facts in a complaint and asks if they are sufficient to state a cause of action. (Fix the City, Inc. v. City of Los Angeles (2026) 118 Cal.App.5th 957, 971.) Arguments that rely on extrinsic evidence to dispute the facts alleged in the complaint aren’t appropriate. (Saint Francis Memorial Hospital v. State Dept. of Public Health (2021) 59 Cal.App.5th 965, 973–974.)

With that in mind, start with Omni’s breach of written agreement cause of action against Destiny Home and its breach of personal guarantee cause of action against Aniema, both of which are breach of contract causes of action. The elements of a cause of action for breach of contract are (1) a contract, (2) plaintiff’s performance of the contract, (3) defendant’s breach of the contract, and (4) damages to plaintiff resulting from that breach. (Coyote Aviation Corp. v. City of Redlands (2025) 111 Cal.App.5th 955, 973.) Omni’s complaint attaches a contract signed by Aniema—both as president of Destiny Home and individually as guarantor—and Omni’s president. It alleges that Omni provided services to Destiny Home in accordance with that agreement, that Destiny Home failed to pay for those services (and that Aniema also failed to pay as guarantor), and that Omni suffered damages in the principal sum of \$14,448.25 because of the breaches. Those allegations are sufficient.

The three

remaining causes of action for services rendered, reasonable value, and account stated are each a form of a common counts cause of action. Generally, the elements of a cause of action for common counts are (1) a statement of indebtedness in a certain sum, (2) consideration, and (3) nonpayment. (Allen v. Powell (1967) 248 Cal.App.2d 502, 510.)

The elements of services rendered are (1) work performed at the request of defendant, (2) defendant promised to pay for them, and (3) defendant is indebted to plaintiff in a certain sum. (Evans

v. Zeigler (1949) 91 Cal.App.2d 226, 230; Haggerty v. Warner (1953) 115 Cal.App.2d 468, 475.) The elements of reasonable value, also known

as quantum meruit, are (1) plaintiff's performance of services, work, or labor, (2) at defendant's request, and (3) circumstances inferring defendant's promise to pay a reasonable value. (Maglica v. Maglica (1998) 66 Cal.App.4th 442, 449-450; Palmer v. Gregg (1967) 65 Cal.2d 657, 660.) And the elements of

account stated are (1) an account statement of indebtedness between the parties, (2) the balance or sum due, (3) the time of the statement, and (4) the debt was found, or the debtor expressly or impliedly promised to pay the amount. (Truestone, Inc. v. Simi West Industrial Park II (1984) 163 Cal.App.3d 715, 725.)

Omni alleged

that there was a contract between it and Destiny Home (with a personal guaranty from Aniema), that Omni performed services under the contract, that the contract obligated Destiny Home and Aniema to pay for those services, that Destiny Home and Aniema failed to pay for those services, and that the principal sum of the debt is \$14,448.25. Again, those allegations are sufficient to state causes of action for services rendered, reasonable value, and account stated.

Because the

demurrer is overruled, an answer is due within 10 days of notice of this order. (Cal. Rules of Court, rule 3.1320(g).) Omni Therapy is to give notice.